

RESOLUTION
ORDINANCE NO. A 6
ADDENDUM

WHEREAS, the Mayor and Board of Aldermen/Alderwoman have determined that Ordinance 6, sections 2 & 5 be modified to show a one year moratorium for a one year period.

This time period will begin June 7, 2012.

ORDINANCE NO. A 6
TOWN OF DECATUR, MISSISSIPPI

AN ORDINANCE ZONING CERTAIN TERRITORY WITHIN THE CORPORATE LIMITS OF THE TOWN OF DECATUR, MISSISSIPPI, AGAINST THE SALE AND GIVING AWAY OF LIGHT BEER AND LIGHT WINE AT ALL TIMES; PROHIBITING SALE AND KEEPING OPEN PLACES OF BUSINESS FOR SALE OR GIVING AWAY SUCH BEER AND WINE ON ANY OTHER DAY THAN SUNDAY BEFORE THE HOUR OF 5 O'CLOCK A.M. AND AFTER THE HOUR OF 9 P.M.; AND PROVIDING FOR PUNISHMENT ON CONVICTION OF ANY VIOLATION OF ANY PROVISION OF THIS ORDINANCE; AND FOR REPEAL OF CONFLICTING ORDINANCES, IN SO FAR AS THEY CONFLICT WITH THIS ORDINANCE, AND FOR OTHER RELATED PURPOSES.

WHEREAS, the Mayor and Board of Aldermen of the Town of Decatur, Mississippi, is order to promote the public health, and the public morale, and the reduce breaches of the peace and to promote the safety of the citizens and people and the public residing and or being within the corporate limits of said Town, has duly considered the effects of the sale and giving away of beer and wine, and places where beer and wine are sold and or given away or may be sold and or given away under license or permits issued under the Mississippi law in said Town, that is such sale as is authorized by Chapter 171, Laws of Mississippi, 1934, as amended, or giving same away, and have, acting as Mayor and Board of Alderman found, that it will promote the public health, and public morals, and decrease breaches of the peace and promotes the safety of the public and the citizens of Decatur and the people residing and or being within the corporate limits of said Town of Decatur, to pass and adopt the following rules and regulations in regard to the sale and giving away of such beer or wine, either or both, within the corporate limits of the

said Town of Decatur, and to establish zones against the sale of beer and wine such as legalized by said state law, from which zones the sale and giving away of such beer or wine shall be excluded entirely, Now therefore,

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, MISSISSIPPI, AS FOLLOWS:

SECTION 1. That all territory within the corporate limits of the Town of Decatur, Mississippi, situated within a distance of 800 yards from any church building being used as a house of worship, and all territory within said corporate limits situated within a distance of 500 yards of any school or college, hereby is zoned against the sale of beer and wine, either and both, at any time, and the sale of beer and wine, either and both, and the giving away of either or both shall be unlawful at all times within said zoned territories above designated within the corporate limits of the Town of Decatur, Mississippi.

SECTION 2. That within the corporate limits of the Town of Decatur, Mississippi, it shall be unlawful for any person, persons, firm, company, group or association of persons, or corporation, to sell or give away any wine or beer the sale of which is legalized by Chapter 191, Laws of Mississippi, 1934, as amended; or to permit same to be done in any business in which an interest is held or had where any sale or giving away of such wine and or beer is done; to permit any bar or place to be kept open, or to keep open any bar or place where any such wine or beer is sold and given away, on the first day of the week commonly called Sunday. And it shall be unlawful to sell, or give away, or to keep open any bar or place where any such beer or wine is sold or given away, or to permit any such sale or giving away or keeping open any such place or bar within the corporate limits of said Town, in any territory zoned against the sale of such wine and beer.

SECTION 3. That it shall be unlawful within the corporate limits of the Town of Decatur, Mississippi, for any person, or persons firm, company, group of persons, association of persons, or corporation to sell or give away, any wine or beer legalized under the state law mentioned hereinabove in section 2; or to permit same to be done in any business in which an interest is held or owned by the person permitting same; and it shall be unlawful to keep open any place or bar where any light wine or beer, such as is legalized by the state law mentioned in Section 2, of the Ordinance, that is by Chapter 171, Laws of Mississippi, 1934, as amended, is sold or given away, or kept for that purpose or either such purpose, on any day other than Sunday, before the hour of five o'clock A.M. or after the hour of 9 O'clock, P.M.; and it shall be unlawful to keep open or for anyone interested in the business to permit to be kept open, any bar or place where any such beer or wine is sold or given away, before 5 O'clock A.M. or after 9 O'clock P.M. on any day other than Sunday, when done within permitted zone or zone within the corporate limits of Decatur, Mississippi. This section shall not legalize any such sale or giving away of such wine or beer, nor shall it legalize any permission therefor, nor the keeping open of any place of business, on any Sunday in which place such beer or wine is sold or given away. Nor shall this section nor any part of this ordinance legalize any set prohibited by this Ordinance when done in zoned territory in the town of Decatur, Mississippi, nor shall it legalize any act or acts

concerning any beer or wine, which act or acts are made unlawful by any law of the State of Mississippi.

SECTION 4. That any person, persons, firm, company, group of persons association of persons, or corporation, who shall violate any provision of this Ordinance, upon conviction thereof, shall be punished by a fine of not exceeding \$100.00, or by imprisonment for not exceeding 30 days, or by both such fine and imprisonment.

SECTION 5. If any provision or provisions of this Ordinance, or the application thereof to any person or circumstances, is held invalid, the remainder of this ordinance and the application of such provision or provisions to other persons or circumstances shall not be affected thereby.

SECTION 6. That all ordinances of said Town of Decatur, Mississippi, in conflict with this ordinance, be and the same are hereby repealed but only in so far as they may conflict with this ordinance.

SECTION 7. That this Ordinance shall take effect and be in full force from and after on month from the date of its passage. It shall however be published as the law requires by posting it being determined by the Mayor and board of Aldermen that no Newspaper is published or printed with the Town of Decatur, Mississippi.

The above Ordinance was passed, adopted and approved by the Mayor and Board of Aldermen of the Town of Decatur, Mississippi, on the 5th day of June, A.D. 1948.